Revision Date:
October 1, 2025

Background:
A Notice of Action (NOA) is used to inform customers of Medi-Cal eligibility determinations or changes.

Purpose:
The purpose of this section is to provide the requirements for issuing a NOA. This section was revised to include guidance on the required notices under the Fair Credit Reporting Act (FCRA).

Policy:
Customers must be provided with an adequate and timely NOA notifying them of their Medi-Cal eligibility status:

- At initial application.
- When there are changes in their level of benefits or Share of Cost (SOC).
- At annual renewal (RE) or change in circumstance (CIC) determinations.

Adequate NOA

To be considered adequate, a NOA must include:

- A clear explanation of the action taken (approval, denial, discontinuance, rescission of a denial or discontinuance, or a change in SOC).
- The effective date of the action and affected household member(s).
- The date the NOA was generated and mailed.
- The reasons for the action and the laws/regulations supporting it.
- The calculated SOC amount and budget including the Net Non-Exempt Income (NNEI) used to determine the SOC.
- Information or action needed to reestablish eligibility or re-evaluate the SOC.
- The name and telephone number of eligibility staff who completed the determination.
- Notice of Language Services form (GEN 1365) to inform the customer of translation services regardless of their preferred language.
- Information on the customer's right to request a state hearing when they disagree with the action on the NOA, including but not limited to:
    - Procedures for requesting a state hearing and the time limits in which a state hearing must be requested.
    - The right of customers to represent themselves or use legal counsel, a relative, friend, or other spokesperson.
    - Circumstances where benefits will continue unchanged (also known as Aid Paid Pending) if the hearing request is made before the date of the proposed action.

Note: Manually generated NOA(s) must be imaged in the case record.

Timely NOA

To be considered timely, a NOA must be issued at least 10 days prior to the first of the month in which the adverse action becomes effective. An adverse action may be to discontinue benefits, increase the SOC, or reduce the level of benefits, except as noted in the section below.

Timely Notice Not Required for Discontinuances or SOC Increase

10-day notice is not required when the customer:

- Is deceased.
- Receives Medi-Cal under another identity or category, in another county or state, or will have dual eligibility on the first of the coming month if the discontinuance action is not taken.
- Provides a signed statement requesting discontinuance or voluntarily waives a 10-day notice in writing. The Request for Withdrawal and/or Waiver of Ten-Day Advance Notice form (MC 215) is available to be mailed to customer or may be signed telephonically.

Notices to Conservators/Public Guardians

Notices for customers with cognitive impairments who are unable to handle their own affairs will be sent to their conservator or public guardian acting on their behalf instead of the customer. A copy of the NOA will be sent to the administrator of the long-term care (LTC) facility where the customer resides if requested by the public guardian or conservator.

Notices to Authorized Representatives (AR)

ARs will receive copies of NOAs only if requested and authorized by the customer. Refer to Medi-Cal Program Guide (MPG) 04.02.07.

ARs have the same rights as the customer to request information and forms in the threshold language or accessible format they prefer (such as Braille or Large Font), when they are authorized to receive notices or other correspondence.

FCRA Informing Notice Requirements

When a determination for Medi-Cal benefits results in an adverse action due to the use of the Asset Verification Program (AVP), The Work Number (TWN), or Verify Current Income (VCI) reports, the customer must be informed of their right to a free credit report under FCRA. The appropriate FCRA notices are listed below:

Data Source	Reporting Agency	Notice
AVP	LexisNexis Risk Solutions (LNRS)	CSF 188
TWN and VCI	Equifax Workforce Solutions (EWS)	CSF 189

Refer to MPG 04.07.02Q and Medi-Cal Processing Guide 19 Fraud Prevention for guidance on using the AVP, TWN, and VCI data sources.

Procedure:

Automated NOAs

NOA(s) will automatically generate after running an Eligibility Determination and Benefit Calculation (EDBC) and accepting the results in the California Statewide Automated Welfare System (CalSAWS). A GEN 1365 will be included for NOAs that are printed centrally in the batch process when the customer's primary language is not currently supported. When printing locally, include a GEN 1365 with the NOA.

Multiple NOAs
Send the NOA only for the program the customer has been approved for. If they are being moved to a less beneficial program, send the approval and discontinuance NOA for each program. After running EDBC, review the *Distributed Documents* page in CalSAWS and reject any NOAs for programs that the customer does not qualify for.

Scenarios
Example 1: The customer applies for Medi-Cal and is evaluated based on the hierarchy. They are over income to the Aged and Disabled (A&D) program but found eligible to the Medically Needy (MN) program with a SOC. Reject the A&D denial NOA and send the MN SOC approval NOA.
Example 2: At RE, the customer is no longer found eligible to the A&D no SOC program and will be approved for the MN program with a SOC. Send the discontinuance NOA for the A&D program and the approval NOA for the MN program with a SOC.

NOAs for Minor Consent Services
For individuals applying for Minor Consent services at a Family Resource Center (FRC), print and provide the NOA(s) during the in-person interview. If the interview is completed off site, the customer must go to the FRC to pick up the NOA. Advise the customer to read and destroy the NOA if confidentiality may be compromised. Refer to MPG 04.04.01 for more information on Minor Consent services.

Rescinding NOAs
If a denial or discontinuance NOA is issued and the adverse action does not occur, the NOA is no longer valid. Send a NOA to the customer informing them that the action was rescinded.

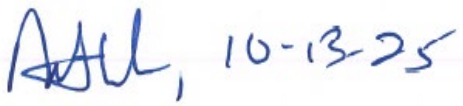
FCRA Informing Notices
FCRA notices CSF 188 and CSF 189 must be manually generated from the Template Repository in the CalSAWS Client Correspondence global navigation bar when staff take adverse action due to the use of the AVP, TWN, or VCI reports.

Program Impacts:
None.

References:
42 CFR 431.206(b)(1)-(3), 431.210(a)-(d), 431.211, 431.213, 435.912, 435.916, and 435.919
WIC 14005.37
22 CCR 50179(a)-(d)
MPP 22-001 and 22-022
MEPM 4U
ACWDLs 08-32, 10-03, 13-13, 14-18, 14-32, 17-23, 19-03, 20-28, 21-23
MEDILs I 15-24, I 22-14

Sunset Date:
This policy will be reviewed for continuance by September 30, 2028.

Approval for Release:



Rick Wanne, Director
Self-Sufficiency Services

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Revision Date:
12/1/2022

Background:
The Americans with Disabilities Act (ADA) requires that services provided by public entities be accessible to individuals with a disability. Counties must communicate with customers with visual impairments in their requested accessible format.

Purpose:
This section was added to include information about alternate format notices for customers with visual impairments.

Policy:
Formats
Human Services Specialists (HSS) must provide communications with customers with visual impairments in their requested accessible format. The Department of Health Care Services (DHCS) has four standard options for alternate formats including:

- Large Print Notices: Notices printed in 20-point Arial Font (15 days)
- Audio CD: Notices are read on an Audio CD (20 days)
- Data CD: Computer Software reads notices (15 days)
- Braille: Notices are printed in raised dots that can be read with fingers (20 days)

Customers may also request County Support which includes county staff reading notices to customers over the phone and conversion to plain text email for compatibility with assistive technology. If customers have a format request other than the above, refer them to DHCS at 1-833-284-0040 for state review.

Timeframes for Alternate Format Notices
The time to convert notices varies depending on the format, however timely notice requirements still apply. When making an alternate format request, allow two days for approval from DHCS, the conversion time noted above next to each format, and the ten-day timely requirement before applying negative actions. This may extend the negative action date for additional months and is not considered an error for quality control purposes. For positive or no change notifications, do not delay the action waiting for format conversion.

Alternate Formats Selection
When a customer with visual impairments makes a request for an alternative format, note it in the case file and enter the request in the DHCS Alternate Formats Database using the Alternate Formats Selection screens online: Alternative Format Selection (ca.gov). All subsequent communication must be in the customer's requested format.

Authorized Representatives (AR) may request information in alternate formats for the customer or themselves.

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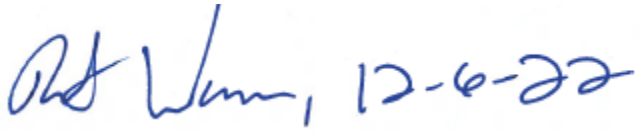
Procedure:
Procedures for Alternate Format requests can be found in Processing Guide 42 – Alternate Format Notices.

Program Impacts:
None

References:
MEDILs 19-18 and 21-31

Sunset Date:
This policy will be reviewed for continuance on or by 12/31/2025

Approval for Release



Rick Wanne, Director
Self-Sufficiency Services